

Ashcombe Advisory Partners LLC

www.ashcombeadvisory.com

February 2, 2024

DRAFT -- superseded by the final version; not for distribution

Robert Smith
VP Finance
Gallegos, Pope and Marsh

Dear Mr. Smith:

I am writing to confirm the terms on which Gallegos, Pope and Marsh has retained this firm for a reputation audit. This letter records what we will examine, who will carry the work, what it costs, and the terms the two of us are agreeing to. Please read it against the conversation we had. If any line here does not match what you understood, say so before you sign, because the cheapest time to fix a misunderstanding is now and not after the work is under way.

Scope of the Engagement

The work is a single, bounded piece: an honest read of how Gallegos, Pope and Marsh is understood today by the audiences that decide things for it, investors and analysts first among them, and a clear account of where that understanding has drifted from the company you actually run. We are not there to tell you what to think of yourselves. We are there to tell you, without softening it, what the outside record says you are, where it is fair, where it has gone stale, and where a gap has opened that will cost you the next time you need the market to take you at your word.

Our method is plain and we have used it for years. We read the full body of public material, the coverage, the analyst notes, and the transcripts of your own calls, and we set what it says beside what you believe to be true. Where the two agree, we say so and move on. Where they part, we name the gap in words specific enough to act on, and we rank the gaps by what they are likely to cost you rather than by how loud they are. What you get at the end is a set of findings you can hand to a board, each one with its source behind it, not a mood reading.

The Team

Michelle Rose will run the engagement day to day and is your point of contact for anything of substance. She keeps the moving parts legible and would rather raise a

small question on a Tuesday than let it grow into a rework by Friday, so expect her to be in touch and answerable when you need a decision moved.

Kimberly Le will do the close reading the audit rests on. She is exact and slow to accept a conclusion she cannot evidence, which is precisely what you want in the person deciding whether a perception gap is real or only a rumor, and every finding she brings will carry the source behind it. I lead this firm and I read the work that leaves it, and I will put my name to the final audit. If at any point the work is not what you were promised, call me directly. I would far rather hear it in the moment than read it in a renewal that does not come.

Fees and Payment

Our fee for the engagement is \$45,500, fixed at the outset and quoted as a single figure rather than as a rate run against a clock. We work to a fixed fee so that our attention stays on the finding and not on the hours, and so that you can call with a question without watching a meter. The fee is billed in two equal installments, the first on commencement and the second at the midpoint of the term. Any out-of-pocket costs you approve in advance are billed at cost and itemized on the invoice. Invoices fall due within thirty days of receipt.

Term and Termination

The engagement commences on February 12, 2024 and runs approximately four months, which is the basis on which the work above is planned. Either of us may end it on fifteen days' written notice. If you end it, you owe the installments due as of that date and the approved costs incurred to it, and nothing more. If we end it, which we would do only if the work had become something we could not do honestly, we return any fee paid for work not yet performed.

Confidentiality

This work runs on candor, and candor runs on discretion. We will treat your internal information, and the fact and the content of this engagement, as confidential, and we will use what you tell us about Gallegos, Pope and Marsh that is not already public only to do the work you have retained us for, sharing it no further than the people on each side who need it. We ask the same of you as to our methods and our materials. A reputation audit that leaked would damage the very thing it was meant to protect, and we will handle it accordingly.

Limitation of Liability

We will carry out this engagement with the care and skill customary in our profession. We do not govern how a market reads a company on a given day and we do not warrant a particular movement in perception, because the parts that decide it are not ours to command. Our total liability under this engagement, on any theory, is limited to the fees actually paid to us for it, and neither of us is liable to the other for indirect or consequential loss. Nothing in this paragraph limits liability for fraud or willful misconduct, and nothing should.

Governing Law

This letter is the whole of the agreement between us on this engagement and supersedes anything discussed or drafted before it. It is governed by the law of the state in which this firm keeps its principal office, and any dispute we cannot resolve between ourselves goes to the courts sitting there, to whose jurisdiction we each consent. Any change to these terms takes effect only in writing signed by both of us.

Acceptance

If this letter reflects our agreement, please sign below and return one copy to me. Michelle Rose will follow within the week to set the kickoff and to agree the first materials we will need from your side. We are glad Gallegos, Pope and Marsh chose us for this. It is a good piece of work and a candid one, and we intend to earn the choice.

Very truly yours,